



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 11425
(SIXTH REVISION)

DEC 27 2002

EXPIRATION DATE: November 30, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Arteva Specialities, S.a.r.l.(d/b/a KoSa)
Charlotte, North Carolina
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the loading and unloading of cargo tanks containing liquid elevated temperature material (dimethyl terephthalate), with an attendant present at all times, but not within 25 feet, as required in HMR. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(i)(3).
5. BASIS: This exemption is based on the application of KoSa, dated December 11, 2002, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Elevated temperature liquid flammable n.o.s., (Dimethyl terephthalate)	3	UN3256	III

DEC 27 2002

7. SAFETY CONTROL MEASURES:

a. Cargo tanks equipped with bottom discharge valves must have a means to prevent loss of contents from the cargo tank discharge valve.

b. A manual valve must be located at each loading/unloading station to be used to stop the flow of material when necessary.

c. An attendant must be present within 57 ft. of the loading and unloading of the elevated temperature material.

8. SPECIAL PROVISIONS:

A current copy of this exemption must be maintained at the loading/unloading facility.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: No modal-specific requirements are required by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

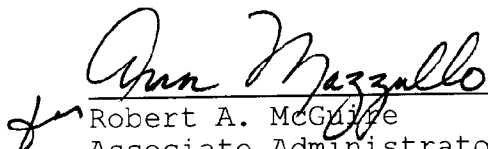
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

DEC 27 2002

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: KFW/sln